

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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BARAQUIEL CASTELAN,

Plaintiff,

- against -

THE CITY OF NEW YORK; SERGEANT NEIL-RODRIC
DEY of the 44th Precinct; OFFICER JOSE ESPINAL of the
44th Precinct; NYPD OFFICERS "JOHN DOE 1-2",
Individually and in their official capacity, (the names John
Doe being fictitious, as the true name and number
are presently unknown),

Defendants.
-----X

Index No.:

SUMMONS

Plaintiff designates Bronx
County as the place of trial.

The basis of venue is:
The county in which the action
arose per CPLR 504(3)

The cause of action arose in
Bronx County and is against
the City of New York

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorney(s) within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: New York, NY
December 17, 2018

Yours etc.

Christopher H. Fitzgerald

/s/

Christopher H. Fitzgerald

Attorney for Plaintiff

BARAQUIEL CASTELAN

233 Broadway, Suite 2348

New York, NY 10279

212-226-2275

TO:

THE CITY OF NEW YORK
Division of Law, Rm 1225 South
1 Centre Street
New York, NY 10007

THE NEW YORK CITY LAW DEPARTMENT
100 Church Street
New York, NY 10007

SERGEANT NEIL-RODRIC DEY
44th Precinct, New York City Police Department
2 East 169th Street,
Bronx, NY 10452

OFFICER JOSE ESPINAL
44th Precinct, New York City Police Department
2 East 169th Street,
Bronx, NY 10452

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
BARAQUIEL CASTELAN,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

- against -

THE CITY OF NEW YORK; SERGEANT NEIL-RODRIC
DEY of the 44th Precinct; OFFICER JOSE ESPINAL of the
44th Precinct; NYPD OFFICERS "JOHN DOE 1-2",
Individually and in their official capacity, (the names John
Doe being fictitious, as the true name and number
are presently unknown),

Defendants.

-----X

Plaintiff, by his attorneys, THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD,
complaining of the Defendants, respectfully alleges, upon information and belief:

1. That on June 24, 2015, on September 19, 2017, and at all times herein mentioned,
Defendant the **CITY OF NEW YORK** was, and still is, a municipal corporation.
2. That on or about October of 2017, and within 90 days of the accrual of the common
law claims, as prescribed by law, a Notice of Claim stating, among other things, the time when
and place where the injuries and damages were sustained, together with Plaintiff's demands for
adjustment thereof, was duly served on on **THE CITY OF NEW YORK**. That claim number
2017PI027890 was issued, and that, on or about June 25, 2018, a hearing was held pursuant to
G.M.L §50(h), and that, thereafter, said Defendants refused or neglected, and up to the
commencement of this action, to make any adjustment or payment thereof, and that thereafter,
and within the time provided by law, this action was commenced.
3. That this action is commenced within a year and 90 days from the dismissal of all
criminal charges against the plaintiff.

4. At all times herein mentioned, Defendant **THE CITY OF NEW YORK** was the employer of all individually named defendants, including Defendants DEY, ESPINAL, and JOHN DOES 1-2.

5. That on June 14, 2015, on June 24, 2015, or any other date mentioned herein, the Plaintiff **BARAQUIEL CASTELAN** (hereinafter “Plaintiff” or “CASTELAN”) had not committed any crime.

STATEMENT OF FACTS

6. On June 24, 2015, Plaintiff **BARAQUIEL CASTELAN** voluntarily surrendered himself to officers of the 44th Precinct after being informed that he was a suspect in the alleged assault of an individual named Anthony Velasquez, alleged to have taken place on June 14, 2015.

7. While at the 44th Precinct, Plaintiff **BARAQUIEL CASTELAN** was arrested, placed in handcuffs, booked, and incarcerated.

8. Plaintiff was thereafter charged and indicted under Indictment No. 1976-2015, for, *inter alia*, NY PL §110/125.25(1)—Attempted Murder in the Second Degree and NY PL §120.07—Gang Assault in the First Degree.

9. On the date and time when these crimes were alleged to have been committed, Plaintiff was at home with his mother and father.

10. These allegations against Plaintiff were false and were fabricated in an attempt to intimidate and falsely convict him.

11. Plaintiff was incarcerated as a pre-trial detainee for the next *two-and-a half years*, awaiting trial.

12. While on trial, evidence came to light that the defendants: DEY, ESPINAL, NYPD OFFICERS “JOHN DOE 1-2”, or other agents of the New York City Police Department had intentionally withheld and failed to disclose the existence of exculpatory evidence, namely, an eye-witness to the assault on Anthony Velasquez who had given a statement to the police shortly after Plaintiff was arrested. The witness stated categorically that Plaintiff was innocent of any wrongdoing.
13. Once the existence of this witness was revealed to Plaintiff’s criminal defense attorneys, she testified at trial and Plaintiff was acquitted of all criminal charges on **September 19, 2017.**
14. The exculpatory witness statement was withheld from the Bronx District Attorney’s Office by defendants in an attempt to bypass any obligations under *Brady v. Maryland* and to secure a conviction for a major felony.
15. At the time of his arrest, Plaintiff’s daughter was an infant of approximately 6 months old. After his acquittal, he returned home to 3-year-old girl who did not recognize him as her father.
16. While detained at Rikers Island awaiting trial, Plaintiff was stabbed in the head by another inmate, resulting in lacerations to the head and face
17. Conditions of his confinement while at Rikers has left Plaintiff with chronic and debilitating neck and back injuries, for which he is still being treated.
18. Plaintiff was working full time as a waiter before he was arrested, a job from which he was terminated as a result of his arrest and incarceration.

19. Plaintiff also continues to suffer from crippling psychological injuries as a result of his confinement, false arrest, malicious prosecution, withholding of exculpatory evidence, and loss of liberty.
20. Plaintiff was maliciously prosecuted by and at the direction of Detective DEY and ESPINAL, Detective “John Does 1-2,” as well as other agents, servants and/or employees of the City of New York, including but not limited to, upon information and belief, agents employed by the New York City Police Department and officers affiliated with the 44th Precinct of the City of New York.
21. None of the aforementioned acts are or were protected by legal privilege, nor were such acts legally justified. Said occurrence and the injuries and damages sustained by claimants were due solely to the negligence, carelessness, recklessness and willful misconduct of the CITY OF NEW YORK, its agents, servants and/or employees.
22. No acts on the part of the Plaintiff **BARAQUIEL CASTELAN**, contributed to the occurrence alleged herein in any manner whatsoever.
23. As a result of the intentional, reckless and negligent acts of the defendants, plaintiff suffered loss of liberty of approximately 27 months.
24. While in custody, Plaintiff further suffered lacerations to his head and face, neck and back injury, severe anxiety, humiliation, and embarrassment, and apprehension, fear and distrust of the police.
25. Plaintiff further suffered emotional and psychological trauma, violation of rights under the U.S. and New York Constitutions, and applicable statutory and case law.

26. That by reason of the foregoing, Plaintiff **BARAQUIEL CASTELAN** has been damaged in a sum which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction.

FIRST CLAIM FOR RELIEF:
MALICIOUS PROSECUTION UNDER STATE and FEDERAL LAW

27. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
28. At the aforementioned times and locations, was detained and held under the imprisonment and control of the defendants and other unidentified officers of the NYPD.
29. Defendants commenced the criminal action against plaintiff in the absence of any probable cause that a crime had been committed by Plaintiff.
30. Defendants commenced this criminal action out of malice.
31. The criminal action against plaintiff has terminated in his favor.
32. At all times hereinafter mentioned, said arrest, confinement and restraint of liberty was not otherwise privileged.
33. Plaintiff was conscious of the confinement.
34. As a direct, sole and proximate result of the malicious prosecution, plaintiff was caused to and did sustain psychological trauma, humiliation and embarrassment, emotional and mental distress, moral and mental degradation, indignity and disgrace, physical injury, injury to personal reputation, inconvenience, and the disturbance and disruption of life.
35. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to the plaintiff and violated his statutory and common law rights as

guaranteed by the law of the Constitutions of the State of New York and of the United States.

36. As a result of the above constitutionally impermissible conduct, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

37. The City of New York remains liable for the conduct of its employees and agents under the doctrine of *respondeat superior*.

SECOND CLAIM FOR RELIEF:
NEGLIGENCE

27. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

28. Defendants negligently caused loss of liberty of 27 months, emotional distress, psychological harm, physical injuries, and damage to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the state of New York.

29. Defendants, the CITY OF NEW YORK, further remain liable for negligent security inside the facility at Riker's Island, resulting in severe physical injuries of the plaintiff.

30. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

THIRD CLAIM FOR RELIEF:
NEGLIGENT HIRING, SCREENING, RETENTION, SUPERVISION AND
TRAINING OF DEFENDANTS DEY, ESPINAL, and JOHN DOES 1-2

31. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
32. Defendant CITY OF NEW YORK negligently hired, screened, retained, supervised, and trained the individual defendants. The acts and conduct of the defendants were the direct and proximate cause of injury to the plaintiff and violated his statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
33. As a result of the foregoing, plaintiff was caused to suffer physical, psychological and emotional injuries, violation of his civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, and damage to his reputation and his standing within his community.

FOURTH CLAIM FOR RELIEF:
DEPRIVATION OF THE RIGHT TO A FAIR TRIAL
UNDER 42 U.S.C. § 1983

34. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.
35. By deliberately manufacturing false evidence against plaintiff and/or withholding exculpatory evidence from prosecutors—including eye-witness statements exonerating Plaintiff from any and all crimes or offenses—and forwarding that fabricated evidence to or withholding exculpatory evidence from prosecutors, the defendant NYPD officers caused Plaintiff to be excessively detained, to be placed in jeopardy of conviction and sentencing, and to be subject to violations of his rights pursuant to the Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, to due process of law and to a

fair trial, and are liable to Plaintiff under 42 U.S.C. § 1983, for compensatory and punitive damages.

36. As a result of Defendants' impermissible conduct, Plaintiff was injured and harmed, namely that he was wrongfully incarcerated for 27 months despite having committed no crime.

37. Accordingly, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

WHEREFORE, plaintiff demands the following relief jointly and severally against all of the defendants:

- a. Compensatory damages;
- b. Punitive damages;
- c. The convening and empaneling of a jury to consider the merits of the claims herein;
- d. Costs and interest and attorney's fees;
- e. Such other and further relief as this court may deem appropriate and equitable.

Dated:

New York, NY
December 17, 2018

Yours, etc.

The Law Office of Christopher H. Fitzgerald

/s/

Christopher H. Fitzgerald
Attorney for Plaintiff(s)
BARAQUIEL CASTELAN
233 Broadway, Suite 2348
New York, NY 10013
212-226-2275

ATTORNEY'S VERIFICATION

CHRISTOPHER H. FITZGERALD, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at THE LAW OFFICE OF CHRISTOPHER H. FITZGERALD, attorneys of record for Plaintiff, **BARAQUIEL CASTELAN**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiffs are not presently in the county wherein I maintain my offices.

DATED: New York, NY
December 17, 2018

_____/s/_____
CHRISTOPHER H. FITZGERALD
Counsel for Plaintiff